

Track 1 — Chapter Build Pass

MPEP §2107 · Utility Under 35 U.S.C. §101

Track 1 — Chapter Build Pass. Format: plain-English rule card → one worked example → one quiz question, per rule. A chapter close-out practice set and a memorize-this list follow, with all quiz answers consolidated in an Answer Key on the final pages. Read entirely offline — no interaction required.

Accuracy note: content is drawn from your uploaded MPEP file, translated into plain English. Spot-check anything with a specific legal test, number, or citation against your MPEP if precision matters for a specific question.

Overview: Utility as a Threshold Requirement

Utility sits alongside eligibility as a §101 requirement, but asks a different question: not "is this the kind of thing patents cover," but "does this actually work / do something useful." Utility rejections are less common than eligibility rejections but show up reliably on the exam, especially paired with enablement.

Rule 1: The Utility Requirement Overview (§2107)

PLAIN ENGLISH

Under §101, an invention must be "useful." Examiners look for a **specific**, **substantial**, and **credible** utility. If any one of these three is missing, the claim can be rejected for lack of utility — separate from (and in addition to) any §101 eligibility rejection.

EXAMPLE

A claim to a new compound stating only "this compound may have various uses" fails to state a specific utility — it's too vague to satisfy the requirement, even if the compound is completely novel.

QUIZ

Which is NOT one of the three required characteristics of an asserted utility?

- (A) Specific
- (B) Substantial
- (C) Novel
- (D) Credible

Rule 2: Specific Utility

PLAIN ENGLISH

A **specific** utility is one particular to the claimed subject matter, not a general utility that could apply to an entire class of similar inventions. Vague statements ("useful for treating disorders," "has useful biological properties") don't count as specific.

EXAMPLE

Claiming a polynucleotide as merely a "gene probe" without disclosing what specific DNA target it detects is not a specific utility — it's exactly the kind of generic label the requirement rejects.

QUIZ

A claim states a new alloy is "useful for various industrial applications." This utility statement is:

- (A) Sufficient because industrial use is understood
- (B) Insufficient — too generic to be a specific utility
- (C) Sufficient because the alloy is novel
- (D) Irrelevant to §101

Rule 3: Substantial Utility

PLAIN ENGLISH

A **substantial** utility means the invention has a real-world, present benefit to the public as currently disclosed — not just a hoped-for use requiring further research to establish practical value.

"Throw-away" uses like using a compound solely as an intermediate in further research generally don't satisfy substantial utility if no other use is disclosed.

EXAMPLE

A claim to a compound whose only stated use is "further study to identify potential uses" fails the substantial utility requirement — it isn't currently useful to the public, only potentially useful someday.

QUIZ

Which best describes the "substantial utility" requirement?

- (A) The invention must be economically significant
- (B) The invention must have a currently real-world use, not just a speculative future one
- (C) The invention must be substantially different from the prior art
- (D) The invention must have more than one use

Rule 4: Credible Utility & the Presumption of Utility

PLAIN ENGLISH

A **credible** utility is one a person of ordinary skill would believe is plausible based on the applicant's disclosure. An asserted utility creates a presumption of utility, and examiners should only challenge it when the record (specification, contemporaneous knowledge in the art) provides a sound basis for doubting credibility — e.g., claims that contradict established scientific principles (perpetual motion machines) are inherently not credible.

EXAMPLE

A claim to a "room temperature superconductor" made from ordinary steel, with no supporting data or explanation, would likely be challenged as lacking credible utility — it contradicts well-established physics without any basis to believe otherwise.

QUIZ

An examiner wants to reject a claim for lack of credible utility. What must the examiner show?

- (A) Nothing — any doubt is sufficient
- (B) A sound, evidence-based reason a skilled artisan wouldn't believe the assertion
- (C) That the claim is anticipated
- (D) That no prior art discloses a similar use

Rule 5: Relationship to §112(a) Enablement

PLAIN ENGLISH

Utility and enablement are linked: if a claimed invention lacks utility, it's also, by definition, not enabled — you can't teach someone how to use something that has no use. A §101 utility rejection is therefore often paired with a §112(a) enablement rejection for the same underlying reason.

EXAMPLE

If an examiner rejects a claim to a cold-fusion device for lacking credible utility, the same claim is typically also rejected under §112(a) for lack of enablement, since the specification can't teach a skilled artisan to use a device the examiner doesn't believe works.

QUIZ

Why do utility rejections often come paired with enablement rejections?

- (A) They don't — they're unrelated rules
 - (B) Because a non-useful invention cannot, by definition, be enabled for that (non-existent) use
 - (C) Because §112 always follows §101 procedurally
 - (D) Because both require prior art searches
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Chapter Close-Out: Mixed Practice Set

Mixing all rules above, in exam-style fact patterns. Answers are in the Answer Key at the end.

1. A claim to a chemical compound states it is "useful as a research tool for further study." Is this a specific and substantial utility?

- (A) Yes, research is always substantial
- (B) No — a use requiring further research to find a real benefit isn't substantial
- (C) Yes, if the compound is novel
- (D) Cannot be determined without prior art

2. An examiner doubts a claimed perpetual motion machine's utility. What must support the rejection?

- (A) Nothing further is needed given scientific principles it contradicts
- (B) A formal survey of skilled artisans
- (C) A prior art search
- (D) An admission from the applicant

3. A compound is disclosed as "useful in treating cancer" with data supporting activity against a specific cancer cell line. Is this specific enough?

- (A) No, cancer is too broad a category regardless of data
- (B) Yes — tied to specific, supported activity, this is a specific utility
- (C) Only if FDA approved
- (D) No, medical uses are never accepted

4. True or False: Utility and enablement rejections are entirely independent and never overlap.

- (A) True
- (B) False

5. Which scenario best justifies an examiner challenging credible utility?

- (A) The applicant is a first-time filer
- (B) The assertion contradicts well-established scientific principles with no supporting basis
- (C) The claim is broad
- (D) No prior art matches the claim

Memorize This: Key Tests & Terms

- Three required characteristics: **specific, substantial, credible** utility.
- An asserted utility gets a **presumption of utility** — examiner needs an affirmative basis to challenge it.
- "Throw-away" / speculative future-research-only uses fail substantial utility.
- Generic/vague utility statements fail specific utility.
- Utility failures often pair with §112(a) enablement rejections — you can't enable a use that doesn't exist.
- Utility (§101) is a separate requirement from eligibility (§101 subject matter) and novelty (§102).

Answer Key

All quiz answers for this PDF, in one place. Rule-card quizzes first, then the chapter close-out set.

Rule-Card Quizzes

Rule 1: The Utility Requirement Overview (§2107)

Which is NOT one of the three required characteristics of an asserted utility?

Answer: C

Novelty is a §102 concept, not a utility requirement. The three utility characteristics are specific, substantial, and credible.

Rule 2: Specific Utility

A claim states a new alloy is "useful for various industrial applications." This utility statement is:

Answer: B

"Various industrial applications" is a generic label, not a specific, particular use — insufficient under the specific-utility requirement.

Rule 3: Substantial Utility

Which best describes the "substantial utility" requirement?

Answer: B

Substantial utility requires a present, real-world benefit as disclosed — not merely a hope that some use will be found through future research.

Rule 4: Credible Utility & the Presumption of Utility

An examiner wants to reject a claim for lack of credible utility. What must the examiner show?

Answer: B

An asserted utility gets a presumption of credibility; the examiner needs an affirmative, evidence-based reason to doubt it, not just skepticism.

Rule 5: Relationship to §112(a) Enablement

Why do utility rejections often come paired with enablement rejections?

Answer: B

Enablement requires teaching how to use the invention; if there's no credible utility, there's nothing valid to enable — the two rejections travel together.

Chapter Close-Out Quiz

1. (B)

A use requiring further research before any real benefit exists is speculative, not substantial — a classic "throw-away" utility problem.

2. (A)

Claims that contradict established scientific principles (perpetual motion) are inherently not credible on their face — no additional evidence-gathering is required to support disbelief.

3. (B)

Specific, data-supported activity against a defined target is exactly what makes a utility specific and credible, even though "cancer" broadly is not itself specific.

4. (B) False

Utility and enablement are related — a lack of credible utility routinely supports a companion §112(a) enablement rejection.

5. (B)

The examiner needs an affirmative, evidence-based reason to doubt an asserted utility; contradicting established science with no support is the clearest example.

End of MPEP §2107 (Utility). Part of the multi-file Chapter 2100 series — see the Novelty, Obviousness, and §112 PDFs for the rest of Chapter 2100.